
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager 
DATE: June 4, 2025
SUBJECT: Consideration of Bid #S-24-25 for an Agreement between the City of Cheyenne and Climate Control LLC., for HVAC and Mechanical Systems Maintenance

One (1) bidder responded to this bid, and the bid tabulation is attached. The Bid was received from:

1. Climate Control LLC (Cheyenne, Wyoming)

A Mandatory Pre-Proposal Meeting was held, and three (3) separate vendors were in attendance.

The following twenty (20) project site locations are included in the Scope of Work:

- | | |
|---|---|
| 1. Municipal Building, 2101 O'Neil Avenue | 12. Fire Training Complex, 7222 Commerce Circle |
| 2. Civic Center, 510 W. 20th Street | 13. Ice & Events Center, 1530 W. Lincolnway |
| 3. Public Safety Center, 415 W. 18th Street | 14. Botanic Gardens, 710 S. Lions Park Drive |
| 4. Headquarters Fire Station, 716 W. 19th Street | 15. Municipal Court, 300 W 17th Street |
| 5. Pioneer Park Facility, 1331 Talbot Court | 16. Fire Station #3 720 Hanson Street |
| 6. Kiwanis Community House, 4306 Lions Park Drive | 17. Fire Station #4 6115 Countryside Avenue |
| 7. Aquatic Center, 931 Martin Esquibel Drive | 18. Fire Station #5 6115 Converse Avenue |
| 8. Fleet Maintenance, 2731 Old Happy Jack Road | 19. Beast Foundation, 2900 Sunflower Road |
| 9. Youth Activity Center, 1317 Parsley Blvd | 20. Cheyenne Gymnastics Facility, 1700 Paul Smith Way |
| 10. Sanitation Transfer Station, 220 S. College Drive | |
| 11. Depot Square Building, 115 W. 15th Street | |

The project also includes:

1. Old Equipment Removals from the Cheyenne Municipal Building, and Cheyenne Civic Center.
2. Software and Hardware Upgrades for Building Controls at the Cheyenne Public Safety Center, and Cheyenne Aquatic Center.

The bids were reviewed by Steve Gaer (Facilities), Vicki Nemecek (Public Works), and Craig LaVoy (Public Works), and their recommendation is to accept the lowest responsive bid from Climate Control LLC.

The term of this Agreement shall not exceed a period of five (5) years, beginning with a three (3) year term, with the option to renew for two (2) additional one (1) year periods. The total Bid Award for all five (5) years is \$1,446,167.00

Funding: Civic Center Fund, Fleet Maintenance Fund, General Fund, Solid Waste Fund, Ice and Events Center Fund, Recreation Fund, 1% Sales Tax 19-22

Year 1 (July 2025 - June 2026)					Climate Control LLC	Previous Term Rate	% Increase from Last Year
Selected	Line Item	Description	Quantity	Unit of Measure	Unit Cost		
X	1.1	Municipal Building	1	Annual	\$26,442.00	\$26,442.00	0%
X	1.2	Civic Center	1	Annual	\$20,638.00	\$20,638.00	0%
X	1.3	Public Safety Center	1	Annual	\$20,654.00	\$20,654.00	0%
X	1.4	Headquarters Fire Station	1	Annual	\$17,298.00	\$17,298.00	0%
X	1.5	Pioneer Park Facility	1	Annual	\$5,706.00	\$5,706.00	0%
X	1.6	Kiwanis Community House	1	Annual	\$5,929.00	\$5,929.00	0%
X	1.7	Aquatic Center	1	Annual	\$11,337.00	\$11,337.00	0%
X	1.8	Fleet Maintenance	1	Annual	\$6,579.00	\$6,579.00	0%
X	1.9	Youth Activity Center	1	Annual	\$9,071.00	\$9,071.00	0%
X	1.1	Sanitation Transfer Station	1	Annual	\$8,618.00	\$8,618.00	0%
X	1.11	Depot Square Building	1	Annual	\$25,755.00	\$25,755.00	0%
X	1.12	Fire Training Complex	1	Annual	\$6,777.00	\$6,777.00	0%
X	1.13	Ice & Events Center	1	Annual	\$14,855.00	\$14,855.00	0%
X	1.14	Botanic Gardens	1	Annual	\$14,409.00	\$14,409.00	0%
X	1.15	Municipal Court	1	Annual	\$16,987.00	\$16,987.00	0%
X	1.16	Fire Station #3	1	Annual	\$5,500.00	New Facility Add	
X	1.17	Fire Station #4	1	Annual	\$5,500.00	New Facility Add	
X	1.18	Fire Station #5	1	Annual	\$5,500.00	New Facility Add	
X	1.19	Beast Foundation	1	Annual	\$4,500.00	New Facility Add	
X	1.2	Cheyenne Gymnastics Facility	1	Annual	\$0.00	New Facility Add	No Cost, Still Under Warranty
Total							
Year 1 Johnson Controls Server Upgrades (Software and Hardware)					Climate Control LLC		
Selected	Line Item	Description	Quantity	Unit of Measure	Unit Cost		
X	JCSU.1	Johnson Controls Server Upgrades (Hardware and Software) - Cheyenne Public Safety Center.	1	LUMP SUM	\$41,275.00		
X	JCSU.2	Johnson Controls Server Upgrades (Hardware and Software) - Cheyenne Aquatic Center.	1	LUMP SUM	\$37,275.00		
Total							
Year 1 (Large Equipment Tasks)					Climate Control LLC		
Selected	Line Item	Description	Quantity	Unit of Measure	Unit Cost		
X	LE.1	Remove & Dispose, Chiller from Civic Center Basement	1	Lump Sum	\$44,625.00		
X	LE.2	Remove & Dispose, Chiller from 4th Floor, and Cooling Tower from Municipal Building Roof	1	Lump Sum	\$64,625.00		
Total							

Year 2 (July 2026 - June 2027)					Climate Control LLC	Previous Term Rate	% Increase from Last Year
Selected	Line Item	Description	Quantity	Unit of Measure	Unit Cost		
X	2.1	Municipal Building	1	Annual	\$27,235.00	\$26,442.00	3%
X	2.2	Civic Center	1	Annual	\$21,257.14	\$20,638.00	3%
X	2.3	Public Safety Center	1	Annual	\$21,273.62	\$20,654.00	3%
X	2.4	Headquarters Fire Station	1	Annual	\$17,816.55	\$17,298.00	3%
X	2.5	Pioneer Park Facility	1	Annual	\$5,877.18	\$5,706.00	3%
X	2.6	Kiwanis Community House	1	Annual	\$6,106.87	\$5,929.00	3%
X	2.7	Aquatic Center	1	Annual	\$11,677.11	\$11,337.00	3%
X	2.8	Fleet Maintenance	1	Annual	\$6,776.37	\$6,579.00	3%
X	2.9	Youth Activity Center	1	Annual	\$9,343.13	\$9,071.00	3%
X	2.1	Sanitation Transfer Station	1	Annual	\$8,876.54	\$8,618.00	3%
X	2.11	Depot Square Building	1	Annual	\$26,527.65	\$25,755.00	3%
X	2.12	Fire Training Complex	1	Annual	\$6,980.31	\$6,777.00	3%
X	2.13	Ice & Events Center	1	Annual	\$15,300.65	\$14,855.00	3%
X	2.14	Botanic Gardens	1	Annual	\$14,841.27	\$14,409.00	3%
X	2.15	Municipal Court	1	Annual	\$17,496.61	\$16,987.00	3%
X	2.16	Fire Station #3	1	Annual	\$5,665.00	\$5,500.00	3%
X	2.17	Fire Station #4	1	Annual	\$5,665.00	\$5,500.00	3%
X	2.18	Fire Station #5	1	Annual	\$5,665.00	\$5,500.00	3%
X	2.19	Beast Foundation	1	Annual	\$4,635.00	\$4,500.00	3%
X	2.2	Cheyenne Gymnastics Facility	1	Annual	\$6,300.00	\$0.00	New Facility Add
Total							
Year 3 (July 2027 - June 2028)					Climate Control LLC	Previous Term Rate	% Increase from Last Year
Selected	Line Item	Description	Quantity	Unit of Measure	Unit Cost		
X	3.1	Municipal Building	1	Annual	\$28,052.32	\$27,235.00	3%
X	3.2	Civic Center	1	Annual	\$21,894.85	\$21,257.14	3%
X	3.3	Public Safety Center	1	Annual	\$21,911.83	\$21,273.62	3%
X	3.4	Headquarters Fire Station	1	Annual	\$18,351.45	\$17,816.55	3%
X	3.5	Pioneer Park Facility	1	Annual	\$6,053.50	\$5,877.18	3%
X	3.6	Kiwanis Community House	1	Annual	\$6,290.08	\$6,106.87	3%
X	3.7	Aquatic Center	1	Annual	\$12,027.42	\$11,677.11	3%
X	3.8	Fleet Maintenance	1	Annual	\$6,979.66	\$6,776.37	3%
X	3.9	Youth Activity Center	1	Annual	\$9,623.42	\$9,343.13	3%
X	3.1	Sanitation Transfer Station	1	Annual	\$9,142.84	\$8,876.54	3%
X	3.11	Depot Square Building	1	Annual	\$27,323.48	\$26,527.65	3%
X	3.12	Fire Training Complex	1	Annual	\$7,189.72	\$6,980.31	3%
X	3.13	Ice & Events Center	1	Annual	\$15,759.67	\$15,300.65	3%
X	3.14	Botanic Gardens	1	Annual	\$15,286.51	\$14,841.27	3%
X	3.15	Municipal Court	1	Annual	\$18,021.51	\$17,496.61	3%

X	3.16	Fire Station #3	1	Annual	\$5,834.95	\$5,665.00	3%
X	3.17	Fire Station #4	1	Annual	\$5,834.95	\$5,665.00	3%
X	3.18	Fire Station #5	1	Annual	\$5,834.80	\$5,665.00	3%
X	3.19	Beast Foundation	1	Annual	\$4,774.04	\$4,635.00	3%
X	3.2	Cheyenne Gymnastics Facility	1	Annual	\$6,489.00	\$6,300.00	3%
Total							
Year 4 (July 2028 - June 2029)					Climate Control LLC	Previous Term Rate	% Increase from Last Year
Selected	Line Item	Description	Quantity	Unit of Measure	Unit Cost		
X	4.1	Municipal Building	1	Annual	\$28,893.89	\$28,052.32	3%
X	4.2	Civic Center	1	Annual	\$22,551.70	\$21,894.85	3%
X	4.3	Public Safety Center	1	Annual	\$22,569.18	\$21,911.83	3%
X	4.4	Headquarters Fire Station	1	Annual	\$18,901.99	\$18,351.45	3%
X	4.5	Pioneer Park Facility	1	Annual	\$6,235.11	\$6,053.50	3%
X	4.6	Kiwanis Community House	1	Annual	\$6,478.78	\$6,290.08	3%
X	4.7	Aquatic Center	1	Annual	\$12,388.24	\$12,027.42	3%
X	4.8	Fleet Maintenance	1	Annual	\$7,189.05	\$6,979.66	3%
X	4.9	Youth Activity Center	1	Annual	\$9,912.12	\$9,623.42	3%
X	4.1	Sanitation Transfer Station	1	Annual	\$9,417.13	\$9,142.84	3%
X	4.11	Depot Square Building	1	Annual	\$28,143.18	\$27,323.48	3%
X	4.12	Fire Training Complex	1	Annual	\$7,405.41	\$7,189.72	3%
X	4.13	Ice & Events Center	1	Annual	\$16,232.02	\$15,759.67	3%
X	4.14	Botanic Gardens	1	Annual	\$15,745.11	\$15,286.51	3%
X	4.15	Municipal Court	1	Annual	\$18,562.16	\$18,021.51	3%
X	4.16	Fire Station #3	1	Annual	\$6,010.00	\$5,834.95	3%
X	4.17	Fire Station #4	1	Annual	\$6,010.00	\$5,834.95	3%
X	4.18	Fire Station #5	1	Annual	\$6,010.00	\$5,834.80	3%
X	4.19	Beast Foundation	1	Annual	\$4,917.27	\$4,774.04	3%
X	4.2	Cheyenne Gymnastics Facility	1	Annual	\$6,683.66	\$6,489.00	3%
Total							
Year 5 (July 2029 - June 2030)					Climate Control LLC	Previous Term Rate	% Increase from Last Year
Selected	Line Item	Description	Quantity	Unit of Measure	Unit Cost		
X	5.1	Municipal Building	1	Annual	\$29,760.68	\$28,893.89	3%
X	5.2	Civic Center	1	Annual	\$23,228.28	\$22,551.70	3%
X	5.3	Public Safety Center	1	Annual	\$23,246.28	\$22,569.18	3%
X	5.4	Headquarters Fire Station	1	Annual	\$19,469.12	\$18,901.99	3%
X	5.5	Pioneer Park Facility	1	Annual	\$6,422.16	\$6,235.11	3%
X	5.6	Kiwanis Community House	1	Annual	\$6,673.16	\$6,478.78	3%
X	5.7	Aquatic Center	1	Annual	\$12,759.92	\$12,388.24	3%
X	5.8	Fleet Maintenance	1	Annual	\$7,404.72	\$7,189.05	3%
X	5.9	Youth Activity Center	1	Annual	\$10,209.48	\$9,912.12	3%

X	5.1	Sanitation Transfer Station	1	Annual	\$9,699.51	\$9,417.13	3%
X	5.11	Depot Square Building	1	Annual	\$28,987.48	\$28,143.18	3%
X	5.12	Fire Training Complex	1	Annual	\$7,627.56	\$7,405.41	3%
X	5.13	Ice & Events Center	1	Annual	\$16,719.40	\$16,232.02	3%
X	5.14	Botanic Gardens	1	Annual	\$16,217.48	\$15,745.11	3%
X	5.15	Municipal Court	1	Annual	\$19,119.00	\$18,562.16	3%
X	5.16	Fire Station #3	1	Annual	\$6,190.32	\$6,010.00	3%
X	5.17	Fire Station #4	1	Annual	\$6,190.32	\$6,010.00	3%
X	5.18	Fire Station #5	1	Annual	\$6,190.32	\$6,010.00	3%
X	5.19	Beast Foundation	1	Annual	\$5,064.80	\$4,917.27	3%
X	5.2	Cheyenne Gymnastics Facility	1	Annual	\$6,884.01	\$6,683.66	3%
		Total					

CITY OF CHEYENNE, WYOMING
AGREEMENT

APPROVED as to form only:
By John Brodie at 4:51 pm, Jun 03, 2025

Bid No. S-24-25

Contract No. _____

THIS AGREEMENT, entered into this ____ day of _____, 2025, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and **CLIMATE CONTROL, LLC**, hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "**HVAC and Mechanical Systems Maintenance**" project all in strict accordance with the Contract Documents, including all addenda thereto, numbered and dated: **Addendum One (1), dated May 14, 2025.**

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract, or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by **June 30, 2028**. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds as follows:

a. Initial Three (3) Year Term, includes: Year 1 (July 2025 - June 2026), two hundred thirty-two thousand, fifty-five dollars (\$232,055.00); Year 1 Johnson Controls Server Upgrades (*Software and Hardware*), seventy-eight thousand, five hundred fifty dollars (\$78,550.00); Year 1 (*Large Equipment Tasks*), one hundred nine thousand, two hundred fifty dollars (\$109,250.00); Year 2 (July 2026 - June 2027), two hundred forty-five thousand, three hundred sixteen dollars (\$245,316.00); and, Year 3 (July 2027 - June 2028), two hundred fifty-two thousand, six hundred seventy-six dollars (\$252,676.00).

b. One (1) Additional Year Renewal, includes: Year 4 (July 2028 - June 2029), two hundred sixty thousand, two hundred fifty-six dollars (\$260,256.00).

c. One (1) Additional Year Renewal, includes: Year 5 (July 2029 - June 2030), two hundred sixty-eight thousand, sixty-four dollars (\$268,064.00).

In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

a. The Contractor will be paid on a monthly basis for the percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

b. The City will withhold five percent (5%) of the dollar value of the work completed for a minimum of forty-one (41) calendar days after Notice of Final Settlement has been published in accordance with Wyo. Stat. §16-6-116. Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City, all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

1. This Agreement;
2. Addenda;
3. Invitation for Bids;
4. Instructions to Bidders;
5. Signed Bid Proposal;
6. General Conditions and Insurance;
7. Supplemental Conditions;
8. Part IV Forms & Notices;
9. Specifications and Special Provisions; and
10. Drawings.

ARTICLE 6. TERM AND TERMINATION. The term of this Agreement shall not exceed a period of five (5) years, beginning with a three (3) year term, with the option to renew for two (2) additional one (1) year periods. The parties may by mutual written agreement renew or extend this Agreement. The City may, without cause, and upon thirty (30) days' written notice to the Contractor, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Contractor shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Contractor in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Contractor for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, that the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Kylie Soden, City Clerk

Patrick Collins, Mayor

Contractor

Climate Control, LLC
By

Title: _____
1411 East Allison Road
Cheyenne, WY 82007